

Court No. - 37

Case :- WRIT - C No. - 13755 of 2014

Petitioner :- Jitendra Kumar Agnihotri

Respondent :- State Of U.P. Thru Secy. And 2 Others

Counsel for Petitioner :- Sanjay Kumar Dubey

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

By means of this petition, the petitioner is not challenging any recovery proceeding. As such, this Bench will not have jurisdiction to entertain this petition.

Put up on 10.3.2014 as a fresh case before the appropriate Bench.

Order Date :- 6.3.2014

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(Attau Rahman Masoodi, J.)

(Vineet Saran, J.)

Court No. - 21

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Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the petitioner and the learned counsel for the Electricity Department.

The petitioner has come questioning the final Assessment Bill dated 17.6.2013.

A preliminary objection has been raised with regard to filing of an appeal against such order under the provisions of Section 127 of the Electricity Act read with Clause 6.8 (d) of the Electricity Supply Code, 2005.

A perusal thereof indicates that the period of limitation given for filing such an appeal is 30 days.

The appeal can be entertained keeping in view the provisions of the aforesaid clause provided the same is filed within 15 days from today before the appellate authority and the same shall be disposed of within six weeks thereafter.

The writ petition is disposed of.

Order Date :- 10.3.2014

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